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[HB1213 Podcast Recording](#)

Transcript

00:00:01 Mary

Welcome back to Policy Perspective with your favorite hosts, Samantha, Daniel, and Mary.

00:00:12 Daniel

Today we'll be heading to Olympia to discuss House Bill 1213, which makes a number of tweaks to the state's Paid Family and Medical Leave Program, also known as PFML. It expands paid leave protections and closes loopholes in the design of the original law.

00:00:26 Samantha

Most importantly, the law expands job protection during leave to employees of small businesses, as opposed to only those with 50 or more employees. Additionally, the law closes loopholes such as limiting the ability to stack paid and unpaid leave and expands grant assistance to small businesses.

00:00:44 Mary

We were also blessed with the opportunity to talk with not one, but three individuals who were involved with HB 1213.

00:00:52 Samantha

First, we have Representative Liz Berry from District 36, a Democrat representing portions of Northwest Seattle, who was the prime sponsor for HB 1213.

00:01:02 Daniel

We will also be hearing from Traci Underwood, who is policy director at the Economic Opportunity Institute, which is a progressive public policy organization that helped craft the bill. We'll also be hearing from Nick Streuli, founder of Sundial Advocacy, who worked on implementing the original paid leave program and now works as a political consultant.

00:01:20 Samantha

What we hope you can take away from this episode is the importance of building a broad coalition to adapt to challenges. We found that a crucial aspect of the legislative process is to remain clear-eyed about the purpose of the legislation and to not compromise on the essential goals of the policy. HB 1213 is a product of a movement which pushes a workers' rights issue forward, using a strategy that relies on partnership, compromise, and a willingness to listen.

00:01:48 Mary

We are very excited for this episode, so get cozy as we walk you through state policymaking through HB 1213 and its impact on our community here in Washington.

00:01:59 Daniel

Before we dive into HB 1213, let's quickly set the stage. In most of the United States, only unpaid leave is guaranteed under the Federal Family and Medical Leave Act, also known as FMLA, which dates back all the way to 1993.

00:02:14 Daniel

This provides job protection for up to 12 weeks, but it's unpaid leave, and only for those who work at companies with more than 50 employees. Representative Berry can speak to that personally.

00:02:24 Rep. Liz Berry

I had an employer that didn't have a paid family leave program. And I remember going to them and saying, OK, I'm pregnant.

00:02:32 Rep. Liz Berry

I'm having my baby in April. I'm going to take three months off. And them saying to me, well, we don't have a paid leave policy. You're going to have to take your vacation and your sick days. And I remember looking at him and saying, but I'm not sick and I'm not going on vacation. I'm having a baby. So how are we going to accommodate this?

00:02:49 Mary

Although paid leave has never been forthcoming at the federal level, federalism allows the states to create their own robust family and medical leave programs. In the 2000s, interest and paid leave programs re-emerged after the passage of federal FMLA.

00:03:07 Samantha

The states who had long-standing temporary disability insurance programs from the 1940s quickly moved to expand their programs to cover paid family leave, starting with California in 2002, followed by New Jersey, Rhode Island, and New York. This meant the infrastructure was already in place to collect premiums and process claims, and any existing balance helped to smooth over any cash flow issues. Washington state, on the other hand, had to build everything from scratch.

00:03:38 Daniel

Luckily, in 2017, a path opened up for the passage of PFML in the Washington State Legislature. The business community and the Republican Senate majority, facing the threat of a ballot initiative, negotiated towards a bill that at least considered some of their concerns.

00:03:53 Mary

In 2017, the legislature passed SB 5975, which created the Washington State Paid Family Medical Leave Program. Housed under the Employment Security Department, the original bill created a set of requirements for eligibility and expectations for the balance between employee and employer premiums to fund the program.

00:04:18 Daniel

Under SB 5975, employees at businesses with 50 or more employees qualified for the program after working at least 820 hours in four of the five previous quarters. These employees could take up to 12 weeks of medical or family leave annually, and 16 weeks if combining both. They could also take an additional 2 weeks for any pregnancy complications.

00:04:39 Daniel

During this time, employees receive up to 90% of their regular wage, limited by the cap of about \$1,500 per week. That's about equal to an \$80,000 annual salary.

00:04:51 Samantha

The department began collecting premiums in 2019, and benefits rolled out in January of 2020. The program had projected similar initial uptake to other states with paid leave programs, but it received 10 times the interest lawmakers had anticipated.

00:05:06 Mary

In one study, many new mothers expressed that PFML allowed them to take longer leaves without as much financial or emotional stress. In addition, some expressed that the

program being available was a factor in having another child. However, one key compromise in the original bill presented major flaws in the program.

00:05:29 Rep. Liz Berry

One of the other things that we were hearing anecdotally about was the idea that if you worked for an employer that had 50 or less employees, part of the Grand Compromise of 2017 to make small businesses more open to this program was that not only did those small businesses not have to pay into the program like their workers did and like other employers did, but they didn't have to offer job protection to their workers when they utilize the paid family medical leave program, meaning that if you were a worker that worked for a business, which is most workers in this state, a small business with 50 or less employees, your job didn't have to be there when you got back from your leave.

00:06:11 Samantha

Representative Berry heard these concerns and struggles through many different organizations that worked on the ground with workers, especially low-wage workers and workers of color. And from what she was hearing...

00:06:24 Rep. Liz Berry

So we were hearing from a lot of different orgs that worked on the ground with workers was that workers, especially low-wage workers and workers of color, were not utilizing the program they had paid into because they were afraid their job wouldn't be there when they got back. So we wanted to get more information about this.

00:06:41 Mary

And that's exactly what she did. In 2023, Representative Berry authored a budget provisor and partnered with researchers at the University of Washington to interview those who weren't utilizing the program due to lack of job protection.

00:06:57 Rep. Liz Berry

And so we really thought that getting that data was important to laying the groundwork to any kind of policy change. And so that data was collected throughout 2023 and 2024. And what we found was that our hypothesis was correct.

00:07:10 Rep. Liz Berry

The data did prove that low-wage workers and workers of color were not utilizing this program. And so because of that, I authored HB 1213.

00:07:22 Daniel

The Economic Opportunity Institute, or EOI, has also done research on who commonly uses the paid leave program. Traci Underwood speaks to this.

00:07:31 Traci Underwood (EOI)

Another reason why it's so important is that when you look at who takes the leave right now, that who takes paid family and medical leave, it is largely white folks. It is largely like middle class to rich folks, right? Like they're able to access this program and they are accessing it like crazy, right?

00:07:54 Traci Underwood (EOI)

Like there's, we have like, it's an incredibly popular program, more popular even than we anticipated, right? Like more money was spent out, I think in the first year than they anticipated because people are absolutely taking them up on it. But who is that?

00:08:15 Traci Underwood (EOI)

And you look at the demographics and you're like, oh, it's folks that have that have the means to weather a job bump if they do end up not coming back to job protection, or it's folks that have, that work at large companies that already have that job protection, which is in the original bill. And it's just people with more access and resources, right? So what happens is then there's a sort of racial divide on who gets it and who doesn't, and that's not okay with us.

00:08:50 Samantha

With all the data showing the inequities resulting from the program and how impactful not having job protection be a guarantee to PFML users working at 50 employee or fewer businesses was the driving force behind Representative Berry being the prime sponsor of HB 1213?

00:09:08 Rep. Liz Berry

The original bill, as introduced, would expand job protection to all workers in the state of Washington, regardless of employer size.

00:09:13 Daniel

Later on, Representative Berry used the UW study as evidence in arguments that there really was an issue arising from SB 5975 and that there needed to be a change in policy, specifically with regards to the 50-employee minimum threshold.

00:09:28 Samantha

Another issue that later arose from the original SB 5975 was the lack of a provision against leave stacking. An example of leave stacking is when an employee takes 12 weeks of federal unpaid leave, followed by 12 weeks of paid leave, resulting in a 24-week gap that the employer must fill.

00:09:47 Samantha

It was often difficult for employers to find temporary employees while still preserving the job for the employee taking the leave. Underwood explained that including this provision in the bill was a relatively simple process, since the business community appreciated it.

00:10:04 Samantha

When SB 5975 was passed, workers' rights advocates knew that the program was far from finished. In our interview with Traci Underwood, she described the long road to amendment, which eventually led to the creation of HB 1213.

00:10:18 Traci Underwood (EOI)

We were one of the sort of foundation organizations in, you know, getting the whole policy passed seven years ago. And it was something that was noted at the time of the passage of the entire program that this was, I believe, a compromise at that time, right?

00:10:40 Traci Underwood (EOI)

And it was sort of a known piece to the policy that was like, well, we're going to have to come back and fix this, right? And so we've been working on that for seven years. And you often have to wait until there's like coalition agreement and a good lawmaker champion and having them tell you like, hey, I think we might have a pathway forward this session until you really can move a bill forward.

00:11:15 Daniel

HB 1213 aims to address employees' concerns about coverage and job protection, as well as fixing a leave-stacking loophole in the original bill. It lowers the threshold for job protection from 50 employees to 2025 in 2026, 15 starting in 2027, and then down to 8 in 2028.

00:11:33 Daniel

It also expands eligibility for paid family and medical leave by reducing the employment duration requirement from one year to 180 days and extends eligibility to even the most of part-time workers, with the minimum shift decreasing to 4 hours.

00:11:49 Samantha

Finally, the bill offers more flexibility to workers, allowing them to take as little as half a day of leave to help small businesses cover the costs of implementing leave, HB 1213 also expands the Small Business Grant Program, which is offered to businesses with 150 employees or fewer.

00:12:08 Mary

In January of 2025, after building solidarity in the legislature to amend PFML, Representative Berry and 21 Democrat colleagues introduced HB 1213. Representatives from a diverse range of associations testified in support of the bill, from the policy-oriented Economic Opportunity Institute to special interest groups like Moms Rising and the Washington State Council of Firefighters.

00:12:36 Daniel

Supporters pointed to experiences of women of color and temporary workers, who particularly benefited from the expanded coverage and job protection the bill provides. On the other side, business groups, especially small business coalitions, expressed reluctant concerns about the cost of the program eating into their already narrow profit margins.

00:12:55 Samantha

Rather than simply opposing, many asked for amendments to the bill which would strengthen the small business grant program.

00:13:02 Mary

In response, the House amended a bill to expand the grant program and its first substitute just weeks later, creating new grant types specifically targeting towards the small businesses. These grant types address costs associated with temporary hiring, wage-related costs, and health benefit reimbursements.

00:13:25 Daniel

The substitute also clarified that the Employment Security Department must submit payment to qualifying employers within 14 calendar days of their completed grant application.

00:13:36 Daniel

A second substitute narrowed the eligibility requirement, doubling the time an eligible employee must have worked with their current employer from 90 to 180 days.

00:13:45 Samantha

Although this compromised protections for temporary workers, it was nevertheless a more generous eligibility requirement than the original SB 5975, which had required a year of employment. The second substitute passed the House with 55 votes in favor, all Democrats, and 41 votes in opposition, mostly Republicans.

00:14:07 Samantha

Once in the Senate, the bill encountered much more resistance. Opponents cited concerns over the expanded flexibility of the program, which allowed for employees to take half a day off, as well as concerns regarding lowering the 50-employee threshold.

00:14:23 Samantha

Senator King, who proposed several amendments to the bill, commented on this problem. So as we look at PFML and we look at the additional costs that, I mean, we've gone from 0.4 to 0.8 to 0.92, and I don't know where we're headed, but it's not down.

00:14:44 WA Sen. Curtis King

And so as you look at changing this from 8 hours required to a four-hour period, I want you to think about the impact that this has on businesses, small and large, to try and find individuals that could fill this gap on a four-hour basis, whether it's four hours a week or whether it's four hours a day or whether it's, you know, a Friday, four hours on a Friday afternoon and four hours on a Monday morning. This is a very hard thing for businesses to have to try and respond to.

00:15:23 Samantha

Eventually, the second substitute passed with several amendments, the most notable of which replaced language, which would have removed the eligibility requirement of 50 or more employees, with a phased reduction approach instead.

00:15:37 Samantha

The amendments also added an annual reporting requirement to assess the financial solvency of the program, as well as providing useful demographic statistics. The bill passed with 28 senators, all Democrats, in favor and 20 in opposition, almost exclusively Republicans.

00:15:56 Mary

Key partners in the implementation of HB 1213 are the Employment Security Department (ESD), Washington Department of Labor and Industry (L&I), and employers.

ESD focuses on processing claims and handing out grants to small businesses. On the other hand, L&I provides the basic information for employers and workers to follow to use PFML. The employer's role is also vital because they are required to provide information about PFML for workers, to calculate and collect premiums, and to pay premiums and report hours and wages.

Barry pointed out that while Washington was a pioneer in passing PFML, it now needed to learn from other states who had passed the law and improved on Washington's original implementation. She remarks that:

00:16:54 Rep. Liz Berry

So we were the first to pass a state paid money medical leave program in 2017. Since then, I want to say like a dozen states have. And the majority of them, if not all of them, have job protection for all workers, regardless of the size of organization you work for.

00:17:11 Rep. Liz Berry

And so that was really another great talking point for my colleagues to say, you know, we're a real outlier now. We are not offering this benefit to all workers. We're all these other states coming after us have, and we need to improve so that we're just as great as these other programs.

00:17:27 Samantha

Another challenge was that some Republicans who agreed with HB 1213 in principle were declining to vote for it because of their relationships with the business community.

00:17:37 Daniel

According to Streuli, who consults with businesses on legislative changes, most companies support PFML in principle, but smaller businesses struggle with the practical challenge of operating short-staffed.

00:17:48 Nick Streuli

I think if you were to speak to them in isolation or speak to a majority of them in isolation about the changes or even the broad concept of having a as widely available and accessible as possible paid family and medical leave program, I think a vast majority of them would say, I absolutely want that.

00:18:07 Nick Streuli

I want that for my employees. I think it's more in the context or challenges of, I now have added cost to my business from a myriad of different places and I now have to hold a job

for a worker in order for them to return for a pretty extended period of time, meaning I can't backfill it.

00:18:32 Nick Streuli

And now I'm down one worker and I'm having a hard time keeping my doors open. It's much more in the implementation side of how all those things end up coming together.

00:18:42 Mary

Additionally, Washington's lack of an income tax means high taxes on businesses, specifically the business and occupation or B&O tax, which applies to not only profit, but also revenue.

00:18:56 Nick Streuli

For example, this last legislative session, the legislature passed, for most businesses in the state of Washington, a 20% increase in their business and occupation tax rate, which is the main business tax in the state of Washington.

00:19:12 Nick Streuli

So you layer that on top of impacts from tariffs and on top of, if you're a healthcare organization, impacts from HR1 at the federal level. And then, you know, so let's say you're a small healthcare practice and you're trying to figure out how to cover, you have, you know, 8 or 10 or 25 workers, and you've got one or two people out on paid leave, and you've got to hold those jobs, but you still have clients you need to serve. For business organizations, in my experience, it always comes down to that. How do I balance that? How do I actually make it work in practice?

00:19:47 Samantha

One potential undesired outcome of the legislation is increasing the business failure rate, of which Washington has the highest nationwide.

00:19:56 Nick Streuli

Washington State has the highest in the country, five-year business failure rate. So you start your business and within the first five years it fails. And Washington has the highest failure rate in the country. We have the second highest failure rate for 10 years from the date of the start of the business.

00:20:12 Nick Streuli

So some of those, you know, failures can be attributed to just some of the challenges of navigating some of that complexity.

00:20:20 Samantha

The concerns of the business community had a lot of sway on how the policy was written in HB 1213, especially in the Senate.

00:20:29 Rep. Liz Berry

And the prime sponsor of the 2017 legislation is a senator now. And I believe she was sympathetic to the conversation that this was too burdensome on business, even though I very vehemently disagree with that.

00:20:47 Rep. Liz Berry

And so the phased-in approach was an attempt. I believe we did the first phased-in approach, including all eight, in the policy committee in an attempt to listen to businesses' concerns with rollout and give them more time.

00:20:59 Rep. Liz Berry

The smaller business you were, the more time you had to kind of figure out how the policy would be implemented. And then it was in, I think it was in the fiscal committee, which is that senator chairs that committee, where they just completely carved out the smallest of small employers, which I think has the most devastating impact, because those are the workers that need this protection most. And it was obviously a policy disagreement that we had, but that was her decision.

00:21:27 Rep. Liz Berry

I actually think it had the support to get out of the Ways and Means Committee without that amendment, but the senator being the chair and being the primary author of the bill originally had a lot of sway over that. And she was very swayed by the business community, this would be devastating to them.

00:21:42 Rep. Liz Berry

They thought this would be the most devastating, one of the most devastating things. This is how they were framing it. Devastating policy changes that we could ever consider this session. And I just didn't buy it.

00:21:53 Rep. Liz Berry

So that's where we ended up. Underwood agreed, arguing that extending protection under HB 1213 would not destabilize employers. I don't think that there's going to be, I don't think that there's going to be a lot of negative impacts.

00:22:06 Traci Underwood (EOI)

Like if you're asking a small business owner, who maybe doesn't qualify for the grant for whatever reason. Like I think there can be, there may be stories here and there of folks struggling a bit to like cover, right, the workload.

00:22:21 Traci Underwood (EOI)

But I think by and large, it's a fear that won't necessarily play out in reality for folks because I think people figure out together how to make things work, right? And so I think the benefits way outweigh maybe the very small costs of this bill.

00:22:47 Mary

Even though Representative Barry and her co-sponsors were faced with resistance from colleagues and stakeholders alike, they were able to pass the legislation. Barry emphasized that much of that progress was because of the immense support from advocacy groups in Washington.

00:23:05 Rep. Liz Berry

Stories are what really help illustrate the problem that you're trying to solve as a legislator, as a lawmaker, as a policymaker. And I remember in particular, there were Moms Rising is a great partner organization of ours.

00:23:18 Rep. Liz Berry

They represent moms and families and kids on policy changes around the country. And they had some really fascinating stories of workers who and members of theirs who had had babies.

00:23:32 Rep. Liz Berry

And we're out on their paid family medical leave, and we're called by their employer within a couple weeks after their child being born, saying, look, if you don't come back and start work again, I'm going to give your job away, and there won't be a job here when you get back.

00:23:44 Rep. Liz Berry

And that was just really powerful and very much illustrative of what we were trying to do in this bill. We also had other examples from labor friends and partners of workers of theirs who had utilized the program for caring for a sick loved one, who got similar calls from employers saying, yep, I know you're out.

00:24:02 Rep. Liz Berry

We don't have to keep your job. And if you don't come back within a week, we're going to give it to somebody else. So it really illustrated the need for this policy change. A lot of people came together to get this bill organized and to persuade lawmakers to pass it. Underwood commented more about EOI's specific engagement with HB 1213.

00:24:22 Traci Underwood (EOI)

We are a statewide public policy, like economic public policy think tank and advocacy organization. So we're very squarely in what we might call the grass tops like work, right?

00:24:37 Traci Underwood (EOI)

We work very closely with lawmakers and then we work very closely in coalition with other orgs that are grassroots orgs that have connection to the people, the workers, to unions, to that, you know, that kind of a thing. And so while we don't have a membership, a large membership like that where we were hearing directly from people, when we sit in coalition with others, that's how we hear about what, union workers are experiencing, right?

What, other people are experiencing, and then we look at the data, like we just look at the numbers because this is a program that's been near and dear to our hearts and our work for many years, because it took over a decade to get passed.

00:25:25 Mary

EOI also provided a lot of support in organizing testimonies to persuade lawmakers to pass HB 1213. When?

00:25:34 Traci Underwood (EOI)

We're well organized, like we were last year, we, you know how many, how much time you'll have, like you can, if you have relationships with the leadership and the bill sponsor, right? Like you'll know how much time you have in, in the committee and how much time each testimony they're going to restrict. Sometimes it's 2 minutes, that's luxurious.

00:25:59 Traci Underwood (EOI)

Sometimes it's a minute and a half. A lot of times it's 60 seconds. You gotta like get it all in there. And so then you, know, can craft panels of testifiers. that will hit at all the pieces you

want to get to in the short amount of time, right? So you're like, okay, we need somebody who can tell a personal story.

00:26:24 Traci Underwood (EOI)

We need somebody who can talk to the technical aspects. We need somebody who can talk about the racial disparities and the social like reasonings behind why we want to do this. It went House committees, full floor vote, Senate committees, full Senate vote.

00:26:42 Traci Underwood (EOI)

So you've got four, you've got four like hearings to coordinate testimony in. So knowing also what, like who's on those committees, because we have those relationships, right? Understanding who needs to hear what, and trying to make sure you get the folks that can talk, can speak to those things in those right committees.

00:27:08 Traci Underwood (EOI)

In a policy committee, you want to tell a story, you want to pull heartstrings, you want that personal connection. and the social reasonings, right? And then in fiscal committees, they just want to hear, they want to hear about the books.

00:27:23 Samantha

Through this strategic messaging, EOI helped to harness the expertise and experiences of a broad coalition. With the passage of HB 1213, stakeholders on all sides are wondering about the future of the program.

00:27:36 Daniel

As access expands, concerns about the program's financial solvency have become particularly pertinent, especially as we head into an especially tight budget year. As one senator noted about the rising premiums in his testimony against the bill, I don't know where we're headed, but it's not down.

00:27:52 Mary

Others, like Representative Barry, are more focused on continuing to expand the coverage and job protections for workers that the program offers. Representative Berry cites the examples of other states, which despite adopting the program later, have a much more ambitious model.

She plans to come back and eliminate the employee minimum and expand access to all workers because the most vulnerable workers still do not have access to PFML.

00:28:24 Samantha

We resonate with Representative Berry and are excited to see how she will work to expand the program in the future. The passage of HB 1213 was a great example of how strong coalition building can sustain the momentum to continually improve a complex program such as PFML.

Although this bill was fixing details in an already passed bill, HB 1213 will impact thousands of working Washingtonians.

00:28:52 Mary

Wow, that was a lot of information on PFML, but incredible insightful to understand state policymaking. We hope you all enjoyed this episode and were able to take some lessons away, such as how important it is to have a broad coalition to create and reform state programs. HB 1213 demonstrates how advocates and policy makers can achieve progress through compromise, such as the phased reduction approach, but not losing sight of the bigger need: expanding access to paid leave.

Again, a special thank you to our guest speakers: Representative Berry, Nick Streuli, and Traci Underwood!

We will be back next week, with an episode on WA HB 1110 with Senator Bateman.

See you then!

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